

THE COMPANIES ACT 2006
COMPANY LIMITED BY SHARES
COPY WRITTEN RESOLUTION

of
AXXSYS LIMITED
("Company")

WEDNESDAY



PASSED ON 28th October 2010

In accordance with the written resolution procedure in chapter 2 of part 13 of the Companies Act 2006, the following resolution was duly passed on 28th October 2010 as a special resolution as indicated below

SPECIAL RESOLUTION

That, the terms of the proposed contract ("**Own Share Purchase Contract**") for the purchase by the Company from Nicolas Charles Jacques Koechlin of 241 A ordinary shares of £0 10 each in the capital of the Company for the aggregate sum of £233,300 (a copy of which is attached to this resolution), be and is hereby approved, and that the Company be and is hereby authorised to enter into the Own Share Purchase Contract.

A handwritten signature in black ink.

...
Director

DATED

October 2010

(1) NICOLAS CHARLES JACQUES KOECHLIN

- and -

(2) AXSYS LIMITED

- and -

(3) OTHERS

**AGREEMENT
FOR PURCHASE OF
OWN SHARES BY
AXSYS LIMITED**

CONTENTS

1	DEFINITIONS AND INTERPRETATION	3
2	SALE AND PURCHASE	3
3	VENDOR'S WARRANTY	4
4	COMPLETION	4
5	POST COMPLETION	5
6	MISCELLANEOUS	5

THIS AGREEMENT is made on **October 2010**

BETWEEN:

- (1) **NICOLAS CHARLES JACQUES KOECHLIN** of 2 Pleasant View, Barden Road, Speldhurst, Kent, TN3 0QH ("**Vendor**"),
- (2) **AXSYS LIMITED** (company number 04967647) whose registered office is at Token House, 11/12 Tokenhouse Yard, London EC2R 7AS ("**Company**"),
- (3) **STEPHEN McDERMOTT** of 71B Oakley Road, London N1 3LW ("**SM**"),
- (4) **PHILIP RITCHIE** of 6a Covert Road, London, SW17 DQL ("**PR**"), and
- (5) **PETER MOLLER** of Abildgaardsgade 32, DK-2100 Copenhagen O, Denmark ("**PM**")

BACKGROUND

- A The Vendor is the sole legal and beneficial owner of the Sale Shares. The Company wishes to purchase and the Vendor wishes to sell the Sale Shares on the terms of this agreement.
- B The terms of this agreement were authorised by special written resolution of the Company passed prior to the date of this agreement in accordance with the procedure in chapter 2 of part 13 of the Companies Act 2006 and section 695 of that Act. An unexecuted copy of this agreement was sent or submitted to every eligible member at or before the time at which such special written resolution was sent or submitted to them.
- C Each member of the Company has waived any right he may have under the articles of association of the Company or otherwise to have any of the Sale Shares offered to him for purchase prior to them being purchased by the Company under this agreement.
- D Each member of the Company has expressly consented to the purchase of the Sale Shares by the Company for all purposes.
- E PM, SM and PR (together the "**Remaining Shareholders**" and each a "**Remaining Shareholder**") are parties to this agreement for the purposes of clause 6.7 only and for no other purpose.

IT IS AGREED:

1. DEFINITIONS AND INTERPRETATION

1.1 In this agreement

"Completion" means completion of the sale and purchase of the Sale Shares in accordance with this agreement,

"Encumbrance" means any mortgage, charge, pledge, lien, deposit by way of security, bill of sale, option, assignment (contingent or otherwise), right to acquire, right of pre-emption or agreement for or obligation as to any of the same, or any other form of right, interest, security, encumbrance or equity of any nature in favour of a third party,

"Sale Shares" means 241 A ordinary shares of £0.10 each in the capital of the Company beneficially owned by and registered in the name of the Vendor, and

"Vendor's Solicitors" means Buss Murton Law LLP

1.2 In this agreement (unless the context requires otherwise), any reference to

1.2.1 any gender includes all genders, to the singular includes the plural (and vice versa), and to persons includes individuals, bodies corporate, unincorporated associations and partnerships (whether or not any of them have a separate legal personality), and

1.2.2 the parties to this agreement includes their respective successors in title and personal representatives

1.3 The contents list and headings are for ease of reference only and shall not affect the construction or interpretation of this agreement

2. SALE AND PURCHASE

2.1 The Vendor shall sell, and the Company shall purchase, the Sale Shares with full title guarantee free from all Encumbrances with effect from Completion

2.2 The consideration payable by the Company for the Sale Shares is £233,300, which shall be paid in cash at Completion

2.3 The Company shall pay the said sum out of its distributable profits

3. WARRANTIES

3 1 The Vendor warrants and represents that

3 1 1 he is the sole legal and beneficial owner of the Sale Shares,

3 1 2 the Sale Shares are fully paid up,

3 1 3 the Sale Shares are free from all Encumbrances, and

3 1 4 there is no litigation, arbitration, prosecution, administrative or other legal proceedings or dispute in evidence or threatened against the Vendor in respect of the Sale Shares or the Vendor's entitlement to dispose of them and so far as the Vendor is aware, there are no circumstances which might give rise to any such proceedings or dispute

3 2 The Vendor undertakes to the Company that pending completion of the sale and purchase of the Sale Shares, he will not dispose of any interest in any of them or any right attaching to them or create or allow to be created any Encumbrance over any of them or agree (whether subject to any condition precedent or conditions subsequent or otherwise) to do any of such things

3 3 The Company warrants that it has sufficient distributable profits to enable it to pay the consideration in full on Completion

4. COMPLETION

4 1 Completion of the sale and purchase of the Sale Shares shall take place immediately after the signing of this agreement when the Vendor and the Company shall cause the following matters to be effected in the following order

4 1 1 the Vendor shall deliver to the Company a duly executed stock transfer form sufficient in every respect to transfer to the Company the legal title to the Sale Shares together with the share certificate for the Sale Shares (or an express indemnity from the Vendor in a form satisfactory to the Company in respect of any share certificate found to be missing), and

4 1 2 the Company shall pay the consideration for the Sale Shares by transfer of immediately available funds through a UK clearing bank the client account of the Vendor's Solicitor

4 2 If any of the provisions of clause 4 1 are not complied with on the date fixed for completion, the Vendor or the Company (as the case may be) not in default may (without prejudice to his or its other rights and remedies)

4 2 1 defer completion to a date not more than 28 days after such date,

4 2 2 proceed to completion so far as practicable, or

4 2 3 rescind this agreement

4 3 Neither the Vendor nor the Company shall be obliged to complete the sale and purchase of the Sale Shares unless the sale and purchase of all the Sale Shares is completed simultaneously, but completion of the sale and purchase of some of the Sale Shares will not affect the rights of the Vendor or the Company with respect to the others

5. POST COMPLETION

5 1 For so long as the Vendor remains the registered holder of the Sale Shares, he agrees that he will not exercise any of the rights attaching to them, except in accordance with any written request of the Company

5 2 As soon as reasonably practicable after Completion, the Company shall

5 2 1 arrange for the stamping and filing of a Form SH03 (Return of purchase of own shares) and for the filing of a Form SH06 (Notice of cancellation of shares) with the Registrar of Companies, and

5 2 2 alter its register of members to show that the Vendor has transferred the Sale Shares to the Company and that they have been cancelled

6. MISCELLANEOUS

6 1 The Vendor's Solicitors are irrevocably and unconditionally authorised to receive any sum paid to them in accordance with this agreement, receipt of such sum in their client account shall be an effective discharge of the Company's obligation to pay such sum, and the Company shall not be concerned to see to the application of it

6 2 The Vendor undertakes that he will at all times after Completion execute any document or do any act or thing which the Company may reasonably require him to execute or do to vest effectively the beneficial and legal ownership of the Sale Shares

in the Company or its nominees free from any Encumbrance or otherwise to give effect to all the terms of and the Vendor's obligations under this Agreement provided that the Company shall pay any stamp duty payable in respect of the sale and purchase of the Sale Shares

- 6 3 This agreement may not be assigned This agreement shall be binding on and enure for the benefit of the successors, estate and personal representatives of each party
- 6 4 A person who is not party to this agreement shall have no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this agreement This clause does not affect any right or remedy of any person which exists or is available otherwise than pursuant to that Act
- 6 5 Each provision of this agreement which is not fully performed at Completion (but which remains capable of performance) shall remain in full force and effect despite Completion
- 6 6 This agreement may be executed in any number of counterparts, and by the parties on separate counterparts, but shall not be effective until each party has executed and delivered at least one counterpart Each counterpart shall constitute an original of this agreement, but all the counterparts shall together constitute one and the same agreement
- 6 7 With effect from Completion the Vendor is hereby unconditionally released from all rights, liabilities and obligations under the shareholders' agreement dated 12 February 2008 made between AXSYS LIMITED, PAUL DODSON, NICOLAS CHARLES JACQUES KOEHLIN and STEPHEN McDERMOTT (the "**Shareholders Agreement**") and shall immediately cease to be a party to the Shareholders Agreement With effect from Completion each of the Company and the Remaining Shareholders hereby confirms that it and he does not have any claim against the Vendor under the Shareholders Agreement or otherwise and the Vendor confirms that he does not have any claim against any of the Remaining Shareholders or the Company under the Shareholders Agreement or otherwise
- 6 8 This agreement is governed by and shall be construed in accordance with English law Each party irrevocably agrees that the courts of England shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this agreement, its subject matter or formation (including any non-contractual dispute or claim)

IN WITNESS WHEREOF this agreement has been duly executed and delivered as a deed on the date stated above

Signed as a deed, but not delivered until the)
first date specified on page 1 by **NICOLAS**)
CHARLES JACQUES KOEHLIN in the
presence of

Signature

Witness signature

Witness name
(block capitals)

Witness address

Executed as a deed, but not delivered until the)
first date specified on page 1 by **AXSYS**)
LIMITED by a director in the presence of a
witness

Signature

Name
(block capitals) **Director**

Witness signature

Witness name
(block capitals)

Witness address

Signed as a deed, but not delivered until the)
first date specified on page 1 by **PETER**)
MOLLER in the presence of

Signature

Witness signature

Witness name
(block capitals)

Witness address

Signed as a deed, but not delivered until the)
first date specified on page 1 by **STEPHEN**)
McDERMOTT in the presence of

Signature

Witness signature

Witness name
(block capitals)

Witness address

Signed as a deed, but not delivered until the)
first date specified on page 1 by **PHILIP**)
RITCHIE in the presence of

Signature

Witness signature

Witness name

(block capitals)

Witness address